

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #10	CCRB Case #: 202101237	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/24/2021 11:45 AM, Wednesday, 02/24/2021 12:15 PM	Location of Incident: East 171st Street and Webster Avenue; Over the telephone	18 Mo. SOL 8/24/2022	Precinct: 44		
Date/Time CV Reported Wed, 02/24/2021 12:48 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 02/24/2021 12:48 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Emmanuel Guerrero	01709	951795	042 PCT
2. LT Michael Pomerantz	00000	947364	042 PCT
3. PO Precious Cummings	14892	967467	042 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Emmanuel Guerrero	Abuse: At East 171st Street and Webster Avenue in the Bronx, Police Officer Emmanuel Guerrero stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Miscellaneous - Subject Retired
B . LT Michael Pomerantz	Abuse: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . LT Michael Pomerantz	Abuse: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz threatened to arrest § 87(2)(b)	C . Unsubstantiated
D . LT Michael Pomerantz	Abuse: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz questioned § 87(2)(b)	D . Unsubstantiated
E . LT Michael Pomerantz	Abuse: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz frisked § 87(2)(b)	E . Unsubstantiated
F . POM Emmanuel Guerrero	Abuse: At East 171st Street and Webster Avenue in the Bronx, Police Officer Emmanuel Guerrero searched § 87(2)(b)	F . Miscellaneous - Subject Retired
G . LT Michael Pomerantz	Abuse: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz searched § 87(2)(b)	G . Unsubstantiated
H . LT Michael Pomerantz	Abuse: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz failed to provide § 87(2)(b) with a business card.	H . Substantiated
I . POM Emmanuel Guerrero	Abuse: At East 171st Street and Webster Avenue in the Bronx, Police Officer Emmanuel Guerrero failed to provide § 87(2)(b) with a business card.	I . Miscellaneous - Subject Retired
J . PO Precious Cummings	Abuse: Over the telephone, Police Officer Precious Cummings refused to provide her name to § 87(2)(b)	J . Unsubstantiated

Officer(s)	Allegation	Inv. Div. Recommendation
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On February 24, 2021, § 87(2)(b) called the CCRB and filed this complaint on behalf of himself and § 87(2)(b). This case was originally assigned to Investigator Caroline Moses. This case was reassigned to Investigator Rob Bryan on April 26, 2021. This case was ultimately reassigned to Investigator Ethan Waterman on June 27, 2021.

On February 24, 2021, at approximately 11:45 a.m., § 87(2)(b) was travelling in the backseat of a for-hire vehicle driven by § 87(2)(b) when Police Officer Emmanuel Guerrero and Lieutenant Michael Pomerantz, both of the 42nd Precinct (PO Guerrero has since retired, and Lieutenant Pomerantz has been transferred to Strike Force) stopped the vehicle at the intersection of East 171st Street and Webster Avenue in the Bronx (**Allegation A, Abuse of Authority: Vehicle Stop, Miscellaneous – Subject Retired**) (**Allegation B, Abuse of Authority: Vehicle Stop, Unsubstantiated**). Lieutenant Pomerantz allegedly threatened to arrest § 87(2)(b) if he did not step out of the vehicle (**Allegation C, Abuse of Authority: Threat of Arrest, Unsubstantiated**). Lieutenant Pomerantz questioned and frisked § 87(2)(b) (**Allegation D, Abuse of Authority: Question, Unsubstantiated**) (**Allegation E, Abuse of Authority: Frisk, Unsubstantiated**). Both Lieutenant Pomerantz and PO Guerrero searched § 87(2)(b) fanny pack, and PO Guerrero additionally searched § 87(2)(b) person (**Allegation F, Abuse of Authority: Search (of person), Miscellaneous – Subject Retired**) (**Allegation G, Abuse of Authority: Search (of person), Unsubstantiated**). Both Lieutenant Pomerantz and PO Guerrero failed to provide § 87(2)(b) with a business card at the conclusion of this incident. (**Allegation H, Abuse of Authority: Failure to Provide RTKA Card, Substantiated**) (**Allegation I, Abuse of Authority: Failure to Provide RTKA Card, Miscellaneous – Subject Retired**). § 87(2)(b) and § 87(2)(b) were ultimately released without summonses or arrests.

Approximately half an hour later, § 87(2)(b) called the 42nd Precinct stationhouse to get additional information about Lieutenant Pomerantz and PO Guerrero. While speaking with § 87(2)(b) Police Officer Precious Cummings, also of the 42nd Precinct, allegedly refused to provide her name upon request (**Allegation J, Abuse of Authority: Refusal to Provide Name, Unsubstantiated**).

§ 87(2)(g), § 87(4-b)

The investigation received BWC from both PO Guerrero and Lieutenant Pomerantz regarding this incident, the relevant aspects of which shall be discussed below (**BR 01-03**).

Findings and Recommendations

Allegation (A) Abuse of Authority: At East 171st Street and Webster Avenue in the Bronx, Police Officer Emmanuel Guerrero stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

In his CCRB interview (**BR 04**), § 87(2)(b) said that he was on his way home in a Lyft when a marked police sedan pulled the car over. Lieutenant Pomerantz approached § 87(2)(b) and said, “You gotta use your turn signals, buddy.”

§ 87(2)(b) declined to participate in this investigation.

At the 01:20 timestamp of his BWC (**BR 02**), PO Guerrero tells § 87(2)(b) that he was pulled over because § 87(2)(b) had not signaled when changing lanes.

The Department Advocate’s Office confirmed that PO Guerrero retired on February 10, 2022 (**BR 05**).

In his CCRB interview (**BR 06**), Lieutenant Pomerantz said that PO Guerrero alerted Lieutenant Pomerantz to a for-hire vehicle carrying a black male passenger with dreadlocks, § 87(2)(b) who was not wearing a seatbelt. Lieutenant Pomerantz stopped the vehicle because of the seatbelt violation. Lieutenant Pomerantz did not recall if the stopped vehicle had committed any traffic violations.

In his memo book (**BR 07**), PO Guerrero wrote the following entry regarding this incident: “Carstop of a cab for failure to signal and rear passenger without seatbelt, strong odor of marijuana from rear passenger who admitted to having weed, passenger extremely uncooperative 91.”

Neither PO Guerrero’s nor Lieutenant Pomerantz’s BWC (**BR 01-02**) captures § 87(2)(b) not wearing a seatbelt or § 87(2)(b) changing lanes without signaling.

§ 87(2)(g)

It is recommended that **Allegation A** be closed as **miscellaneous – subject retired** and **Allegation B** be **unsubstantiated**.

Allegation (C) Abuse of Authority: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz threatened to arrest § 87(2)(b)

In his CCRB interview (**BR 04**), § 87(2)(b) said that Lieutenant Pomerantz approached him as he sat in the backseat of § 87(2)(b) vehicle. Lieutenant Pomerantz said he smelled marijuana in the car. The driver said it did not smell like marijuana. § 87(2)(b) had marijuana on him, but it was inside a sealed bag inside § 87(2)(b) black fanny pack and the car did not smell like marijuana. Lieutenant Pomerantz turned to § 87(2)(b) and ordered him to step out of the car. § 87(2)(b) asked why he was being ordered to get out of the car if the issue had to do with the driver committing a traffic violation. Lieutenant Pomerantz said, “If you don’t step out of the car, you’re going to jail.” § 87(2)(b) asked what he would be going to jail for. Lieutenant Pomerantz said, “Because you didn’t step out of the vehicle.”

Per Lieutenant Pomerantz’s BWC (**BR 01**), Lieutenant Pomerantz interacts with § 87(2)(b) starting around the 00:40 timestamp. Lieutenant Pomerantz does not activate his BWC (and thus, its audio component) until the 01:00 timestamp and his verbiage is not captured until then. It is clear, given his gesticulation and § 87(2)(b) clearly mouthing that he is unwilling to get out of the car, that Lieutenant Pomerantz is directing § 87(2)(b) to get out of the car. At the 01:00 timestamp, Lieutenant Pomerantz activates his BWC and says, “Not for nothing, we have the right to ask you to step out.” § 87(2)(b) responds, “How you got the right to arrest me ‘cuz...” and Lieutenant Pomerantz says, “You’re not being arrested.” § 87(2)(b) addresses PO Guerrero, saying, “You know what he just said, though, that’s some bullshit, you’ve got the right to arrest me because y’all stopped § 87(2)(b) Lieutenant Pomerantz responds, “I said we have the right to ask you to step out the car.”

PO Guerrero’s BWC was generally consistent with that of Lieutenant Pomerantz and did not capture the allegation.

In his CCRB interview (**BR 06**), Lieutenant Pomerantz said that he told § 87(2)(b) several times to step out of the car (he did not recall how many times), and § 87(2)(b) did not comply physically although he did not verbally refuse. § 87(2)(b) may have said something to the effect of, “Just one second.” Lieutenant Pomerantz did not recall telling § 87(2)(b) he would go to jail if he did not get out or threatening to arrest him.

It is apparent that Lieutenant Pomerantz had directed § 87(2)(b) to exit the vehicle. § 87(2)(b)

(g)

it is recommended that **Allegation C** be **unsubstantiated**.

Allegation (D) Abuse of Authority: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz questioned § 87(2)(b)

Allegation (E) Abuse of Authority: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz frisked § 87(2)(b)

Allegation (F) Abuse of Authority: At East 171st Street and Webster Avenue in the Bronx, Police Officer Emmanuel Guerrero searched § 87(2)(b)

Allegation (G) Abuse of Authority: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz searched § 87(2)(b)

It is undisputed that § 87(2)(b) had a quantity of unburnt marijuana in his bag.

In his CCRB interview (BR 04), § 87(2)(b) said that Lieutenant Pomerantz told him he smelled marijuana in the car. The driver said it did not smell like marijuana. § 87(2)(b) had marijuana on him, but it was inside a sealed bag inside § 87(2)(b) black fanny pack and the car did not smell like marijuana. § 87(2)(b) stepped out of the vehicle and Lieutenant Pomerantz asked § 87(2)(b) if he had anything on him. § 87(2)(b) told Lieutenant Pomerantz that he had marijuana on him. Lieutenant Pomerantz patted down § 87(2)(b) legs, ankles, and chest and squeezed the outside of his pants pockets and the chest pocket of his jacket. Lieutenant Pomerantz searched the inside of § 87(2)(b) two side pockets of his jacket and his fanny pack and placed the bag inside the car. § 87(2)(b) had a hooded sweatshirt on under his jacket which Lieutenant Pomerantz did not search. There was nothing inside § 87(2)(b) jacket pockets. In his pants pockets, § 87(2)(b) had some cash and his house keys. The officers did not search the car. Lieutenant Pomerantz told § 87(2)(b) to get back in the car and he complied.

In a follow-up call (BR 08), § 87(2)(b) told the investigation that he had not smoked recently in the time prior to this incident.

§ 87(2)(b) declined to participate in this investigation.

Per Lieutenant Pomerantz's BWC (BR 01), he first addresses § 87(2)(b) at the 00:40 timestamp. § 87(2)(b) appears to be on his phone, which he holds in his right hand. § 87(2)(b) torso and hands never materially change position. Lieutenant Pomerantz opens § 87(2)(b) car door at the 00:52 timestamp. § 87(2)(b) arms rest on his thighs and do not materially change position, and his torso remains facing towards the front of the car. § 87(2)(b) never puts his hands in his pockets. At the 01:14 timestamp, once § 87(2)(b) is out of the car, Lieutenant Pomerantz asks § 87(2)(b) "No weapons, right?" § 87(2)(b) replies, "No." Lieutenant Pomerantz asks what is inside § 87(2)(b) fanny pack. § 87(2)(b) replies, "Weed, my charger." Lieutenant Pomerantz tells § 87(2)(b) that marijuana is still illegal. Lieutenant Pomerantz then frisks § 87(2)(b) torso and shoes. At the 01:45 timestamp, PO Guerrero searches § 87(2)(b) fanny pack. § 87(2)(b) steps to the rear of § 87(2)(b) car with PO Guerrero. PO Guerrero hands § 87(2)(b) fanny pack to Lieutenant Pomerantz – it is unclear what Lieutenant Pomerantz does with the bag. PO Guerrero searches § 87(2)(b) outermost jacket, unzips it, and frisks and searches § 87(2)(b) hoodie underneath his outermost jacket.

Per PO Guerrero's BWC at the 01:20 timestamp (BR 02), he tells § 87(2)(b) that § 87(2)(b) is being asked to step out of the car because it smells like marijuana in the car.

The Department Advocate's Office confirmed that PO Guerrero retired on February 10, 2022 (BR 05).

In his memo book (BR 07), PO Guerrero wrote the following entry regarding this incident: "Carstop of a cab for failure to signal and rear passenger without seatbelt, strong odor of marijuana from rear passenger who admitted to having weed, passenger extremely uncooperative 91."

In his CCRB interview (BR 06), Lieutenant Pomerantz said that he did not recall if he smelled marijuana though § 87(2)(b) had told them he had marijuana on him while he was in the vehicle. Lieutenant Pomerantz and PO Guerrero had not asked him if he had any marijuana and did not find the marijuana he referred to.

Lieutenant Pomerantz said that, while § 87(2)(b) was still seated in § 87(2)(b) vehicle, § 87(2)(b) seemed nervous and was reaching into his outside jacket pockets. Lieutenant Pomerantz

told § 87(2)(b) to not do this. After a few seconds, Lieutenant Pomerantz opened the car door. § 87(2)(b) again reached into one of his jacket pockets, so Lieutenant Pomerantz was “extremely nervous” at this point due to the possibility of him grabbing a weapon. Lieutenant Pomerantz grabbed his right wrist (he did not recall with which hand) and told him not to reach in his pockets anymore. Lieutenant Pomerantz told § 87(2)(b) two more times not to put his hands in his pockets, but he continued to do so. After § 87(2)(b) stepped out of the vehicle, Lieutenant Pomerantz passed off § 87(2)(b) to PO Guerrero, who came around the car and stood to Lieutenant Pomerantz’s left while Lieutenant Pomerantz searched § 87(2)(b) bag. He did not recall if the bag was open or closed when he grabbed it, though by holding it he determined there were heavy, hard objects inside (there was nothing specific about the weight or feel of the objects that suggested they were weapons. Lieutenant Pomerantz might have patted the pocket § 87(2)(b) hand was in, but he did not do a full frisk or search in his pockets. PO Guerrero frisked § 87(2)(b) while they stood behind the stopped car, but he did not recall if PO Guerrero looked inside his pockets. Lieutenant Pomerantz found a closed bottle of tequila in a box and some personal items he did not recall, but no illegal items.

This portion of Lieutenant Pomerantz’s statement is materially different than that which is shown in his BWC. Per his BWC, Lieutenant Pomerantz never tells § 87(2)(b) to keep his hands out of his pockets; Lieutenant Pomerantz does frisk § 87(2)(b) torso and shoes. However, the investigation received BWC for this case after interviewing Lieutenant Pomerantz and thus was unable to ask Lieutenant Pomerantz about these material differences during his interview. Despite these differences, the facts established in the BWC and the impending statute of limitations date rendered it unnecessary and unfeasible to reinterview Lieutenant Pomerantz.

Per *People v. De Bour*, 40 N.Y.2d 210 (BR 20), the common-law right to inquire is activated by a founded suspicion that criminal activity is afoot and permits a somewhat greater intrusion in that a policeman is entitled to interfere with a citizen to the extent necessary to gain explanatory information, but short of a forcible seizure. Officers may frisk an individual if the officer reasonably suspects that they are in danger of being injured by virtue of the detainee being armed.

The investigation determined that Lieutenant Pomerantz’s alleged observations of § 87(2)(b) reaching into his jacket pockets to be unfounded, and thus, could not establish founded suspicion to ask § 87(2)(b) if he had any weapons on his person. Furthermore, Lieutenant Pomerantz did not have a reasonable suspicion to frisk § 87(2)(b).

Per *People v. Chestnut*, 36 N.Y.2d 971 (BR 09), the odor of marijuana smoke emanating from a defendant’s vehicle provides officers with probable cause to search the vehicle and its occupants.

On the date of this incident – February 24, 2021, the recreational use of marijuana remained illegal in the state of New York.

While § 87(2)(b) noted that he had unburnt marijuana on his person, § 87(2)(b) said that he had not recently smoked marijuana on the date of this incident and only offered this information after Lieutenant Pomerantz asked him if he had any weapons and had started to frisk him. Lieutenant Pomerantz never said that he detected an odor of marijuana in his BWC or his CCRB statement. While PO Guerrero noted an odor of marijuana in his BWC and memo book entry regarding this incident, he did not mention the odor of marijuana on his BWC until Lieutenant Pomerantz had already questioned and begun to frisk § 87(2)(b) and after § 87(2)(b) admitted to being in possession of marijuana. On BWC, § 87(2)(b) denies an odor of marijuana.

§ 87(2)(g)

It is

recommended that **Allegations D, E, and G** be **unsubstantiated**, and **Allegation F** be closed as **miscellaneous – subject retired**.

Allegation (H) Abuse of Authority: At East 171st Street and Webster Avenue in the Bronx, Lieutenant Michael Pomerantz failed to provide § 87(2)(b) with a business card.

Allegation (I) Abuse of Authority: At East 171st Street and Webster Avenue in the Bronx, Police Officer Emmanuel Guerrero failed to provide § 87(2)(b) with a business card.

As established above, both Lieutenant Pomerantz and PO Guerrero frisked and searched § 87(2)(b) person and property.

In his CCRB interview (**BR 04**), § 87(2)(b) said that he did not receive business cards during this incident.

In his CCRB interview (**BR 06**), Lieutenant Pomerantz said he did not provide a business card because he “wasn’t the last person to deal with him” and did not want to prolong the interaction. Lieutenant Pomerantz did not know if PO Guerrero provided a business card to § 87(2)(b).

BWC footage from Lieutenant Pomerantz (**BR 01**) and PO Guerrero (**BR 02**) captures them both leave the location without providing § 87(2)(b) with a business card.

The Department Advocate’s Office confirmed that PO Guerrero retired on February 10, 2022 (**BR 05**).

Per Patrol Guide Procedure 203-09 (BR 10) and New York City Administrative Code § 14-174 (BR 11), members of service are to offer business cards at the conclusion of certain law enforcement activities, including stops, questions, and frisks which do not result in an arrest or summons.

§ 87(2)(g)

It is recommended that **Allegation H** be substantiated.

§ 87(2)(g) It is recommended that **Allegation I** be closed as **miscellaneous – subject retired**.

Allegation (J) Abuse of Authority: Over the telephone, Police Officer Precious Cummings refused to provide her name to § 87(2)(b)

In his CCRB interview (**BR 04**), § 87(2)(b) said that about thirty minutes after this interaction, he called the 42nd Precinct stationhouse. § 87(2)(b) spoke with a female officer about the interaction. § 87(2)(b) asked her for the names of PO Guerrero and Lieutenant Pomerantz. The female officer said she did not know how to look that information up but then said that Lieutenant Pomerantz was one of the officers assigned the car that stopped § 87(2)(b). § 87(2)(b) asked the female officer for her name and she refused to provide it. § 87(2)(b) asked her for the spelling of Lieutenant Pomerantz’s name and she said she did not know, but then said that he had just walked in and passed the phone to Lieutenant Pomerantz. Lieutenant Pomerantz said he did not have a shield number because of his rank but provided his name and provided PO Guerrero’s name and shield number, as well as PO Cummings’ name and shield number.

In her CCRB interview (**BR 19**), PO Cummings said that she answered § 87(2)(b) call as she always did, “042 Precinct, PO Cummings speaking.” § 87(2)(b) complained about his incident, and PO Cummings was able to determine that PO Guerrero and Lieutenant Pomerantz were the officers involved. As PO Cummings did not know how to spell Lieutenant Pomerantz’s name and he was in the vicinity, PO Cummings handed the phone to Lieutenant Pomerantz and he proceeded to speak with § 87(2)(b) from there. § 87(2)(b) never asked PO Cummings for her name, and PO Cummings never refused to provide it.

In his CCRB interview (**BR 06**), Lieutenant Pomerantz did not recall if he went back to the stationhouse and did not know if PO Cummings was working at the stationhouse that day. He did not recall hearing anything about an officer speaking to § 87(2)(b) on the phone, him asking an

officer for their name, or asking to make a complaint report about an officer.

§ 87(2)(g)

it is recommended that **Allegation J** be **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 14**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 15**).
- PO Cummings has been a member of service for three years and this is the first CCRB complaint to which she has been a subject.
- PO Guerrero was a member of service for 11 years and was a subject in four CCRB complaints and 21 allegations, two of which were substantiated.
 - 202002500 involved two substantiated allegations of failure to provide RTKA card. The Board recommended Command Discipline A and the CTS+ database does not list the NYPD's imposed penalty.
 - § 87(2)(g)
- Lieutenant Pomerantz has been a member of service for 14 years and has been a subject in 20 CCRB complaints and 55 allegations, 14 of which were substantiated or cited for other misconduct.
 - § 87(2)(g), § 87(4-b)
 - 201200816 involved a substantiated allegation of a frisk § 87(2)(g), § 87(4-b). The Board recommended charges regarding the frisk; the NYPD ultimately imposed instructions.
 - § 87(2)(g), § 87(4-b)
 - 201801182 involved a substantiated allegation of a search (of person), § 87(2)(g), § 87(4-b). The Board recommended Command Discipline B regarding the search; the

NYPD ultimately imposed no penalty.

- 201907725 § 87(2)(g), § 87(4-b) two citations for failure to produce a stop and frisk report.
- 202005986 involved a substantiated allegation of failure to provide RTKA card § 87(2)(b) and a citation for a failure to produce a stop and frisk report.
- § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of July 6, 2022, the New York City Office of the Comptroller has no record for any Notices of Claim being filed regarding this incident (**BR 18**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 10

Investigator:	<u>Ethan C. Waterman</u>	<u>Inv. Ethan Waterman</u>	<u>07/07/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>07/11/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date